

W.P No. 28334 of 2013.

Mst. Salla

The DPO etc.

12.02.2014 Mehar Ahmad Bakhsh Bharwana, Advocate for the petitioner.
Mr. Ashfaq Ahmad Kharal, AAG and Safdar Ali, SI along with record.

Through the instant petition filed under *Article 199 of the Constitution of Islamic Republic of Pakistan, 1973*, the petitioner has prayed for setting aside the order dated 07.10.2013, whereby the learned Additional Sessions Judge, Sargodha has directed that on receipt of report of judicial inquiry and that of re-examination of deceased body, by way of exhumation through Medical Board, complainant will be at liberty to file private complaint regarding alleged occurrence, if she so desired and the application of the petitioner for registration of a criminal case against respondents No.2 to 7 was dismissed.

2. The learned counsel for the petitioner has contended that the learned ASJ has passed the impugned order without application of judicious mind; that the learned ASJ did not take into consideration the material placed before the Court and that no cogent reason was given by the learned ASJ, while passing the impugned order in an application under section 22-A/22-B Cr.P.C and that

the learned ASJ has committed serious irregularity so the impugned order is liable to be set aside.

3. Conversely, the learned Law Officer contends that sons of the petitioner are hardened and desperate criminals and they have been involved in many cases of heinous nature and that the instant petition has been filed by the petitioner just to save the skin of her son and to put pressure upon the local police so the instant petition be dismissed with cost.

4. From the perusal of record, it reveals that two sons of the petitioner namely Saif Ullah (deceased) and Muhammad Nasrullah were involved in case FIR No.6 dated 15.01.2013 under sections 337-A(ii)/337-L(ii)/34 PPC registered at Police Station Shah Nikdar, District Sargodha and in case FIR No.150/13 dated 21.05.2013 under sections 395/412 Police Station Qadir Pur, District Jhang. On receiving spy information that proclaimed offenders are present in their houses, due to this the raid was conducted and during the raid, cross firing took place and during the incident Atta Muhammad, ASI received injuries on his chest and shoulder, who later on succumbed to the injuries. Two injuries were attributed to Saif Ullah and two injuries were attributed to Muhammad Nasrullah so against the said occurrence FIR No.150 dated 12.08.2013 under sections 302/353/186/216/324/34 PPC read with section 7 of the Anti Terrorism Act, 1997 was registered at Police Station Shah Nikdar, District Sargodha and accused of the said FIR managed to escape.

5. On receiving wireless message from wireless control that four accused duly armed with fire arms

weapons have snatched a motorcycle, one mobile phone, Rs.31001/- from two persons are moving towards Mangomali, the police officials reached at the place of occurrence and on arrival of accused persons on motorcycle they were asked to stop but the accused turned towards on "Kham Rasta" by leaving their motorcycles and concealed themselves in a "Guava Garden" and started firing on police party. The police also made fire shots and when the firing stopped, police officials made search and Saif Ullah was taken into custody in an injured condition from the place of occurrence and Saif Ullah-injured disclosed the names of his companions/co-accused to the police officials and recovery of different articles were also effected from his personal search but while shifting him to hospital, he succumbed to the said injuries and regarding said occurrence FIR No.159/13 dated 21.08.2013 under sections 302/324/353/34 PPC read with section 13 of Arms Ordinance, 1965 was registered at Police Station Shah Nikdar, District Sargodha. Two versions has come forward on the record, one of the police officials, which is brought through above referred FIR and second version was brought by the petitioner, mother of the deceased Saif Ullah. On the said matter, the judicial inquiry was conducted by the learned Civil Judge, Sargodha, who found that the allegation leveled by the petitioner in his application for registration of the case against the police officials are not based on true facts. The learned Civil Judge/Inquiry Officer, Sargodha has also come to the conclusion that FIR No.159 under sections 302/324/353/34 PPC read with section 13 of Arms Ordinance, 1965 was

registered at Police Station Shah Nikdar, District Sargodha is true. The learned counsel for the petitioner states that as per postmortem report the sign of torture was reported by the Doctor, whereas as per post mortem report of Saif Ullah (deceased) no sign of torture was found on the person of deceased. The postmortem report nullify the version of the petitioner that her sons were taken out of police lock up on 21.08.2013 at about 9.00/10.00 p.m and they were tortured, whereas from the postmortem report, it reveals that autopsy was conducted by District Standing Medical Board on 21.08.2013 at 9.00 a.m. It is common prudence that man can tell a lie but the documents cannot. Medical examination of Inayat Ullah regarding alleged police torture was not conducted. The petitioner has also not made any effort for getting him medically examined through the learned Illaqa Magistrate, in case police officials did not co-operate with the petitioner and she also could not produce any witness to substantiate her view before the Inquiry Officer.

6. All the above facts and circumstances show that the petitioner wants to involve the police officials in the case of her son's murder just to save skin of her other son namely Muhammad Nasrullah against whom case FIR No.150 dated 12.08.2013 under sections 302/324/353/186/216/34 PPC read with section 7 of the Anti Terrorism Act, 1997, Police Station Shah Nikdar, District Sargodha was registered. It is relevant to mention here that in the said FIR Saif Ullah is also co-accused and main injuries are attributed to both of the accused and all the injuries received by Atta Muhammad, ASI were

dangerous to his life. Above all, the learned counsel for the petitioner has failed to point out any illegality or irregularity in the impugned order and impugned order of the learned ASJ did not call for any interference in circumstances. Resultantly, for the foregoing reasons, this petition is without merits and the same is hereby dismissed.

(Aalia Neelum)
Judge

Approved for reporting.

Judge

*Tariq

